ATTORNEY OR PARTY WITHOUT ATTORNEY STATE BAR NUMBER:
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ATTORNEY FOR (name): Plaintiff

FOR COURT USE ONLY

ELECTRONICALLY
FILED
Superior Court of California, County of San Francisco
05/08/2024
Clerk of the Court
BY: SHENEQUA GLADNEY
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF San Francisco
STREET ADDRESS: 400 McAllister Street
MAILING ADDRESS:
CITY AND ZIP CODE: San Francisco CA 94102
BRANCH NAME: San Francisco County Superior Court

PLAINTIFF: JPMorgan Chase Bank, N.A.
DEFENDANT: MERCEDES M TAYLOR
[ ] DOES 1 TO _____

CONTRACT

[X] **COMPLAINT** [ ] **AMENDED COMPLAINT** ***(Number):***

[ ] **CROSS-COMPLAINT** [ ] **AMENDED CROSS-COMPLAINT** ***(Number):***

Jurisdiction ***(check all that apply):***
[X] **ACTION IS A LIMITED CIVIL CASE (does not exceed $35,000)**
Amount demanded [X] **does not exceed $10,000**
[ ] **exceeds $10,000**
[ ] **ACTION IS AN UNLIMITED CIVIL CASE (exceeds $35,000)**
[ ] **ACTION IS RECLASSIFIED by this amended complaint or cross-complaint**
[ ] **from limited to unlimited**
[ ] **from unlimited to limited**

CASE NUMBER:
CGC-24-614481

1. **Plaintiff*** *(name or names):* JPMorgan Chase Bank, N.A.

alleges causes of action against **defendant*** *(name or names):* MERCEDES M TAYLOR

2. This pleading, including attachments and exhibits, consists of the following number of pages: 3
3. a. Each plaintiff named above is a competent adult
[X] **except** plaintiff *(name):* JPMorgan Chase Bank, N.A.
(1) [ ] a corporation qualified to do business in California.
(2) [ ] an unincorporated entity *(describe):*
(3) [X] other *(specify):* National Bank organized under Federal Law
b. [ ] Plaintiff *(name):*
(1) [ ] has complied with the fictitious business name laws and is doing business under the fictitious name *(specify):*
(2) [ ] has complied with all licensing requirements as a licensed *(specify):*
c. [ ] Information about additional plaintiffs who are not competent adults is shown in Attachment 3c.
4. a. Each defendant named above is a natural person
[ ] **except** defendant *(name):*
(1) [ ] a business organization, form unknown.
(2) [ ] a corporation.
(3) [ ] an unincorporated entity *(describe):*
(4) [ ] a public entity *(describe):*
(5) [ ] other *(specify):*

[ ] **except** defendant *(name):*
(1) [ ] a business organization, form unknown.
(2) [ ] a corporation.
(3) [ ] an unincorporated entity *(describe):*
(4) [ ] a public entity *(describe):*
(5) [ ] other *(specify):*

* If this form is used as a cross-complaint, plaintiff means cross-complainant and defendant means cross-defendant.

*CA DFPI Debt Collector License Number 10223-99

SHORT TITLE: JPMorgan Chase Bank, N.A. v. MERCEDES M TAYLOR	CASE NUMBER:

4. b. The true names of defendants sued as Does are unknown to plaintiff.
   (1) [ ] Doe defendants *(specify Doe numbers):* were the agents or employees of the named defendants and acted within the scope of that agency or employment.
   (2) [ ] Doe defendants *(specify Doe numbers):* are persons whose capacities are unknown to plaintiff.
   c. [ ] Information about additional defendants who are not natural persons is contained in Attachment 4c.
   d. [ ] Defendants who are joined under Code of Civil Procedure section 382 are *(names):*

5. [ ] Plaintiff is required to comply with a claims statute, **and**
   a. [ ] has complied with applicable claims statutes, *or*
   b. [ ] is excused from complying because *(specify):*

6. [ ] This action is subject to [ ] Civil Code section 1812.10 [ ] Civil Code section 2984.4.

7. This court is the proper court because
   a. [ ] a defendant entered into the contract here.
   b. [ ] a defendant lived here when the contract was entered into.
   c. [X] a defendant lives here now.
   d. [ ] the contract was to be performed here.
   e. [ ] a defendant is a corporation or unincorporated association and its principal place of business is here.
   f. [ ] real property that is the subject of this action is located here.
   g. [ ] other *(specify):*

8. The following causes of action are attached and the statements above apply to each *(each complaint must have one or more causes of action attached):*
   [ ] Breach of Contract
   [X] Common Counts
   [ ] Other *(specify):*

9. [ ] Other allegations:

10. **Plaintiff prays** for judgment for costs of suit; for such relief as is fair, just, and equitable; and for
   a. [X] damages of: $9,091.58
   b. [ ] interest on the damages *Plaintiff waives post charge-off prejudgment interest
      (1) [ ] according to proof
      (2) [ ] at the rate of *(specify):* percent per year from *(date):*
   c. [ ] attorney's fees *Plaintiff waives attorney fees
      (1) [ ] of: $
      (2) [ ] according to proof.
   d. [ ] other *(specify):*

11. [ ] The paragraphs of this pleading alleged on information and belief are as follows *(specify paragraph numbers):*

Date: 5/7/2024

Harvey Moore___ Matthew Keim___ Angela Dawson___ Christine Siduguen___ Jason Burrows___ Chan Hsu___ Nicholas Morello X John Phan___ Linda Doan___ Chinyere A. Abuka___ Jeremy LaForge___

(TYPE OR PRINT NAME)

Nicholas Morello

(SIGNATURE OF PLAINTIFF OR ATTORNEY)

(If you wish to verify this pleading, affix a verification.)

SHORT TITLE: JPMorgan Chase Bank, N.A. v. MERCEDES M TAYLOR	CASE NUMBER:

FIRST (number) **CAUSE OF ACTION—Common Counts**

ATTACHMENT TO [X] Complaint [ ] Cross - Complaint

(Use a separate cause of action form for each cause of action.)

CC-1. Plaintiff *(name):* JPMorgan Chase Bank, N.A.

alleges that defendant *(name):* MERCEDES M TAYLOR

became indebted to [X] plaintiff [ ] other *(name):*

a. [X] within the last four years
   (1) [X] on an open book account for money due.
   (2) [X] because an account was stated in writing by and between plaintiff and defendant in which it was agreed that defendant was indebted to plaintiff.

b. [X] within the last [ ] two years [X] four years
   (1) [ ] for money had and received by defendant for the use and benefit of plaintiff.
   (2) [ ] for work, labor, services and materials rendered at the special instance and request of defendant and for which defendant promised to pay plaintiff.
      [ ] the sum of $
      [ ] the reasonable value.
   (3) [ ] for goods, wares, and merchandise sold and delivered to defendant and for which defendant promised to pay plaintiff
      [ ] the sum of $
      [ ] the reasonable value.
   (4) [X] for money lent by plaintiff to defendant at defendant's request.
   (5) [X] for money paid, laid out, and expended to or for defendant at defendant's special instance and request.
   (6) [X] other *(specify):* This cause of action relates to the credit card issued by Plaintiff having account number XXXXXXXXXXXX2570.

CC-2. $ 9,091.58 , which is the reasonable value, is due and unpaid despite plaintiff's demand, plus prejudgment interest [ ] according to proof [ ] at the rate of _____ percent per year from *(date):* *Plaintiff waives post charge-off prejudgment interest

CC-3. [ ] Plaintiff is entitled to attorney fees by an agreement or a statute
   [ ] of $ *Plaintiff waives attorney fees
   [ ] according to proof.

CC-4. [ ] Other:

Form Approved for Optional Use
Judicial Council of California
PLD-C-001(2) [Rev. January 1, 2009]

Code of Civil Procedure, § 425.12
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